Confidentiality Agreement

Between BP p.l.c. and Petróleo Brasileiro S.A. (Petrobras)

Date: 1 January 2018

Recitals

Whereas, BP p.l.c. (hereinafter referred to as "BP") and Petróleo Brasileiro S.A. (hereinafter referred to as "Petrobras") are considering entering into a strategic alliance to explore joint projects and potential commercial agreements in various areas of mutual interest; and

Whereas, in order to evaluate the feasibility and potential benefits of such an alliance, BP and Petrobras intend to exchange certain confidential information, including trade secrets and seismic data; and

Whereas, the parties wish to set forth the terms and conditions under which such confidential information will be disclosed and protected through this Confidentiality Agreement.

1. Definitions

1.1 "Confidential Information" shall mean any and all information, whether written, oral, or in any other form, that is disclosed by one party (the "Disclosing Party") to the other party (the "Receiving Party") in connection with the potential strategic alliance, including but not limited to trade secrets, seismic data, business plans, financial information, technical data, and any other proprietary information.

1.2 "Trade Secrets" shall mean any formula, pattern, compilation, program, device, method, technique, or process that derives independent economic value, actual or potential, from not being generally known to, and not being readily ascertainable by proper means by, other persons who can obtain economic value from its disclosure or use.

1.3 "Seismic Data" shall mean any data obtained from seismic surveys, including but not limited to raw data, processed data, interpretations, and any other related information.

2. Disclosure of Confidential Information

2.1 The Disclosing Party may disclose Confidential Information to the Receiving Party for the sole purpose of evaluating the potential strategic alliance.

2.2 The Receiving Party shall use the Confidential Information solely for the purpose of evaluating the potential strategic alliance and shall not use or disclose the Confidential Information for any other purpose without the prior written consent of the Disclosing Party.

3. Obligations of the Receiving Party

3.1 The Receiving Party agrees to take all necessary steps to protect the confidentiality of the Confidential Information, including but not limited to:

- Limiting access to the Confidential Information to those employees, agents, and representatives of the Receiving Party who have a need to know such information for the purpose of evaluating the potential strategic alliance.
- Informing such employees, agents, and representatives of the confidential nature of the information and their obligation to maintain its confidentiality.
- Implementing appropriate physical, electronic, and procedural safeguards to protect the Confidential Information from unauthorized access, use, or disclosure.

4. Exclusions from Confidential Information

4.1 The Receiving Party shall have no obligation to maintain the confidentiality of any information that:

- Is or becomes publicly known through no fault of the Receiving Party.
- Is rightfully received from a third party without breach of any obligation of confidentiality.
- Is independently developed by the Receiving Party without use of or reference to the Confidential Information.
- Is required to be disclosed by law or regulatory authority, provided that the Receiving Party gives the Disclosing Party prompt notice of such requirement and assists the Disclosing Party in seeking a protective order or other appropriate remedy.

5. Return or Destruction of Confidential Information

5.1 Upon request by the Disclosing Party or upon termination of the potential strategic alliance, the Receiving Party shall promptly return or destroy all Confidential Information in its possession or control, including all copies and derivatives thereof, and shall provide the Disclosing Party with written confirmation of such return or destruction.

6. Term and Termination

6.1 This Agreement shall commence on the date first written above and shall continue in effect until terminated by either party with 30 days' written notice.

6.2 The obligations of confidentiality and non-use shall survive the termination of this Agreement for a period of five (5) years.

7. Miscellaneous

- **Governing Law:** This Agreement shall be governed by and construed in accordance with the laws of the State of Rio de Janeiro, Brazil.
- **Amendments:** Any amendments to this Agreement must be made in writing and signed by both parties.
- **Entire Agreement:** This Agreement constitutes the entire agreement between the parties and supersedes all prior agreements and understandings, whether written or oral, relating to the subject matter hereof.
- **Severability:** If any provision of this Agreement is held to be invalid or unenforceable, the remaining provisions shall continue in full force and effect.
- **Notices:** Any notices required or permitted under this Agreement shall be in writing and shall be deemed to have been duly given if delivered personally, sent by registered mail, or sent by email to the addresses set forth below, or to such other address as a party may specify by notice to the other party.

Signatures

For and on behalf of BP p.l.c.:

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Name: Bob Dudley

Title: Chief Executive Officer

Date: 1 January 2018

For and on behalf of Petróleo Brasileiro S.A.:

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Name: Pedro Parente

Title: President

Date: 1 January 2018